

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Michael Dever	Team: Team # 1	CCRB Case #: 200207533	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Thursday, 10/31/2002 10:30 PM	Location of Incident: C/O E. 192nd St. & Aqueduct Ave. & I/O 50th Precinct Stationhouse	18 Mo. SOL 4/30/2004	Precinct: 52
Date/Time CV Reported Fri, 11/01/2002 12:40 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 11/08/2002 9:21 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Craig Crisfield	15108	918523	PBBX AC
2. SGT Robert Patelli	04383	893500	PBBX AC
3. An officer			PBBX AC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Sean Lynch	10212	917115	PBBX AC

Officer(s)	Allegation	Investigator Recommendation
A . SGT Robert Patelli	Abuse: Sergeant Robert Patelli authorized the stop of the car in which § 87(2)(b) was an occupant.	A . Exonerated
B . SGT Robert Patelli	Abuse: Sergeant Robert Patelli authorized the search of the car in which § 87(2)(b) was an occupant.	B . Exonerated
C . SGT Robert Patelli	Abuse: Sergeant Robert Patelli authorized the strip-search of § 87(2)(b) in the 52nd Precinct Stationhouse.	C . Unfounded
D . An officer	Discourtesy: An officer spoke obscenely and/or rudely to § 87(2)(b)	D . Unfounded
E . SGT Robert Patelli	Force: Sergeant Robert Patelli used physical force against § 87(2)(b) in the 52nd Precinct Stationhouse.	E . Exonerated
F . POM Craig Crisfield	Force: Police Officer Craig Crisfield used physical force against § 87(2)(b) in the 52nd Precinct Stationhouse.	F . Exonerated
G . SGT Robert Patelli	Force: Sergeant Robert Patelli instructed Police Officer Craig Crisfield to use pepper spray against § 87(2)(b) in the 52nd Precinct Stationhouse.	G . Exonerated

Synopsis

On 11-1-02, Lieutenant Thomas McPartland of the Bronx Anti-Crime Unit called the IAB Command Center and reported that prisoner § 87(2)(b) engaged in a violent struggle with Sergeant Robert Patelli and PO Craig Crisfield in the bathroom of the 52nd Precinct. § 87(2)(b) and both officers were injured. § 87(2)(b) was removed to § 87(2)(b). IAB conducted two interviews with § 87(2)(b) and subsequently referred this case to CCRB.

Upon being interviewed by CCRB, § 87(2)(b) stated that he was driving with § 87(2)(b) when they were stopped by three plainclothes officers, later identified as Sergeant Patelli, PO Crisfield and PO Sean Lynch. The officers allegedly searched § 87(2)(b) vehicle. When a bag of alleged narcotics was recovered and § 87(2)(b) denied owning it, one of the officers allegedly used discourteous language toward him. § 87(2)(b) and § 87(2)(b) were subsequently arrested and transported to the precinct.

§ 87(2)(b) alleged that at the precinct, PO Crisfield and Sergeant Patelli escorted him to the bathroom and ordered him to remove his clothes. He added that after he pulled down his pants, one of the officers attempted to insert an unidentified object into his rectum. § 87(2)(b) began struggling, at which point the officers used physical force and pepper spray against him. The physical altercation resulted in both § 87(2)(b) and Sergeant Patelli requiring medical treatment.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) It is recommended that the allegations regarding the stop and search of § 87(2)(b) vehicle be closed as exonerated.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) It is recommended that the physical force and pepper spray allegations be closed as exonerated. § 87(2)(g) it is recommended that the allegations that he was subjected to discourteous language and strip-searched both be closed as unfounded.

Summary of Complaint

IAB Testimony – § 87(2)(b)

§ 87(2)(b) is a § 87(2)(b)-old Hispanic male. § 87(2)(b)

§ 87(2)(b) was interviewed in English on 11-1-02 at § 87(2)(b) by Detectives Dennis Vickery and Dominic Mineo of IAB Group 9. Many of § 87(2)(b) statements are difficult to understand. In addition, § 87(2)(b) appears to have difficulty understanding the IAB officers' questions. When asked what happened, § 87(2)(b) stated "Two guys hit me in the bathroom, putting something in my ass." The investigating officer then asked if the incident happened in a cell or in the bathroom. § 87(2)(b) responded that it

occurred in the bathroom, which was on the same floor as his cell. § 87(2)(b) stated that the two officers punched him in the face, the stomach and in the “balls” when he walked into the bathroom. They also pepper sprayed him. One of the officers then took off his pants.

§ 87(2)(b) then cried out in pain. The IAB officer asked him where he was hurting. § 87(2)(b) did not respond and then stated that he did not understand. The IAB officer then asked, “What hurts you? Does your ass hurt you?” § 87(2)(b) replied “Yeah, my ass, they put assault on my ass. They said I got drugs in my ass.” After the officer pulled down his pants, § 87(2)(b) was pushed face down to the floor. At that point, § 87(2)(b) felt a hard object inserted into his rectum and began screaming. Two other officers then entered the bathroom. § 87(2)(b) could not describe them because his eyes had pepper spray in them. § 87(2)(b) was handcuffed the entire time. The IAB officer then repeatedly asked § 87(2)(b) how he fought the officers if he was handcuffed the entire time. § 87(2)(b) responded “my leg,” which apparently meant that he kicked. He added, “I bite the police...I remember biting the police two times.” § 87(2)(b) was then placed back into the cell and an ambulance was called for him.

§ 87(2)(b) was interviewed on 12-19-02 at the Bronx District Attorney’s Office by Detectives Mark Dennis and Zachary Jackson of IAB Group 54. Also present was Assistant District Attorney Kristen Bowes, § 87(2)(b) criminal attorney § 87(2)(b) as well as Sandra Rabinovich, a Spanish interpreter for the Bronx District Attorney.

§ 87(2)(b) stated that he was driving in the vicinity of E. 192nd Street and Aqueduct Avenue with a teenage friend he could only identify as “§ 87(2)(b)”. The police stopped them and § 87(2)(b) was ordered to exit the vehicle. § 87(2)(b) complied and the officers searched his vehicle. Shortly thereafter, one of the officers recovered a bag with an alleged narcotic substance inside. § 87(2)(b) stated that he told the officer that he did not know that was in the car, but whatever was inside was his and he took responsibility for.

§ 87(2)(b) was transported to the 52nd Precinct, and, while in the cell, screamed and cried because the officers refused to remove his handcuffs. Three white male officers took him to the bathroom and two of them remained inside with him. § 87(2)(b) handcuffs were removed and he was ordered to take off his clothes. § 87(2)(b) dropped his pants and underwear and removed his coat. He was standing upright, facing a wall, when he heard one of the officers say “I guess you got the drugs from your ass...” At that point, he felt a hard object touch the cheeks of his buttocks once. There was no penetration by the unidentified object.

After this occurred, § 87(2)(b) turned around and pushed one of the officers. Both officers grabbed him and punched him in the torso area, before § 87(2)(b) and one of the officers fell to the floor. Once on the floor, he was repeatedly punched and kicked in the torso area. § 87(2)(b) was also pepper sprayed. Shortly after being pepper sprayed, § 87(2)(b) bit one of the officers’ fingers. After he was subdued and handcuffed, an officer flushed his face out in the sink and placed him back in the cell. § 87(2)(b) stated that he was not struck after he was handcuffed.

§ 87(2)(b) was later treated at § 87(2)(b).

CCRB Testimony — § 87(2)(b)

§ 87(2)(b) was interviewed in Spanish at the CCRB on 1-16-03. He stated that on 10-31-02, at about 10:30 PM, he was driving a car with a friend, § 87(2)(b) when he was stopped by police. § 87(2)(b) knows § 87(2)(b) who is § 87(2)(b) years old, because they work on music together. § 87(2)(b) was in the passenger seat.

After § 87(2)(b) was stopped, the officers asked him if there were drugs in the car, to which he said no. § 87(2)(b) told the officers that he had borrowed the car from a friend, but added that anything in the car belonged to him and he was certain that there were no drugs in the

car. Upon searching the car, they found a bag of white powder on the floor. § 87(2)(b) told the officer that the drugs were not from the car. The officer said, “what do you think? I pulled them out of my ass?” § 87(2)(b) said yes at which point he and § 87(2)(b) were handcuffed and transported to the precinct. § 87(2)(b) stated that the substance recovered was not crack, but “headache powder” that belonging to his friend.

At the precinct, § 87(2)(b) and § 87(2)(b) were placed in separate cells. § 87(2)(b) handcuffs were left on by the order of a white-shirted officer who, according to § 87(2)(b) knew him from the neighborhood. After being placed into a cell, § 87(2)(b) requested that his handcuffs be removed because they were too tight and began kicking the cell bars. In response, officers entered the cell and restrained his legs by tying them together.

Sergeant Patelli and PO Crisfield removed § 87(2)(b) from the cell and escorted him to the bathroom, where § 87(2)(b) was ordered to face the wall and take off his clothes. § 87(2)(b) § 87(2)(b) complied and stood facing the wall with his arms still handcuffed behind him. The officers took the restraints off of his legs and removed his handcuffs so that he could use the bathroom. § 87(2)(b) took off his jacket and then pulled down his pants. He told the officers “You’re not going to find anything in my clothes because I don’t have any drugs. The drugs came from your ass and you put them into my car,” referring to the comment one of the officers had made earlier. At that point, one of the officers grabbed § 87(2)(b) by the back of the neck and pushed his face into the wall. § 87(2)(b) then felt an unidentified cold metal object pushed partially into his rectum. He could not identify the officer who did that. The object did not actually penetrate § 87(2)(b) but did cause pain. § 87(2)(b) began to struggle and cried out.

Sergeant Patelli and PO Crisfield pushed § 87(2)(b) back against the wall. § 87(2)(b) § 87(2)(b) struggled until he was taken to the floor, where the officers were able to get one handcuff on him. It was difficult to breathe because one of the officers was covering his mouth and an officer’s knee was pressed against his back. While he was on the floor, § 87(2)(b) was punched in the testicles and was also punched about ten times in the ribs, in quick succession. PO Crisfield pepper sprayed him in the face, which caused a burning sensation in his eye and mouth area. Since PO Crisfield had to get very close to § 87(2)(b) in order to pepper spray him, § 87(2)(b) § 87(2)(b) was able to bite his hand. § 87(2)(b) s pants were still down around his ankles. Another officer, later identified as PO Lynch, entered the bathroom in response to the commotion. Shortly after being pepper sprayed, the officers handcuffed § 87(2)(b) and pulled his pants back up. They flushed his eyes out in the sink and placed him back in the cell. An ambulance came to the precinct to remove § 87(2)(b) to the hospital. As he was being removed from the precinct, § 87(2)(b) called out to § 87(2)(b) who was in another cell, and told him to tell his wife what had happened.

§ 87(2)(b) stated that he might have been intoxicated at the time of his arrest. He stated that his memory was somewhat hazy, possibly because he had been drinking. But § 87(2)(b) § 87(2)(b) was unable to recall for certain whether he had been drinking or not.

§ 87(2)(b) had no recollection of speaking to IAB detectives in the hospital or to which hospital he went to.

Results of Investigation

Attempts have been made to interview § 87(2)(b) a witness to § 87(2)(b) s initial stop and arrest. According to § 87(2)(b) § 87(2)(b) heard him calling out in the precinct after he was involved in the physical altercation. § 87(2)(b) states that he called out to § 87(2)(b) about what had happened. A field visit was also made on 5-14-03 in an attempt to locate § 87(2)(b) with negative results. § 87(2)(b) provided a false address at the time of his arrest. The letter sent to that address was returned to sender. § 87(2)(b) subsequently provided updated contact information for § 87(2)(b)

This investigator sent two letters to the updated address and received no response and made numerous calls to § 87(2)(b) cellular phone with negative results.

This investigator made a field visit to § 87(2)(b) residence to § 87(2)(b) new address on 6-26-03 and left a letter for him. Using Metrosearch, contact information was found for § 87(2)(b) mother. A message was left for her but no response has been received.

Attempts have also been made to locate prisoners who may have been in the precinct at the time of § 87(2)(b) screaming about the incident in the bathroom. A search of the Booking, Arraignment and Disposition System, as well as the precinct prisoner roster, identified various prisoners who were in the precinct around the time § 87(2)(b) was, including § 87(2)(b). Letters were sent to each prisoner. § 87(2)(b) responded but has refused to provide a statement for this investigation.

Officer Testimony

Sergeant Robert Patelli and Police Officers Craig Crisfield and John Lynch are assigned to the Bronx Anti-Crime Unit, which is part of the Bronx Patrol Borough. On 10-31-02, they were working together in an unmarked vehicle.

§ 87(2)(b)

Sergeant Robert Patelli

Sergeant Robert Patelli was interviewed at the CCRB on 2-6-03. He stated that about 10:30 PM, they were driving northbound on Willoughby Avenue in an unmarked car. Sergeant Patelli was seated in the passenger seat, PO Lynch was driving and PO Crisfield was seated in the rear. They observed a parked vehicle with § 87(2)(b) seated in the driver seat and § 87(2)(b) in the passenger seat. The vehicle was double-parked in front of 192nd Street and Aqueduct Avenue, which is a drug prone location. As Sergeant Patelli and his partners passed the vehicle in their unmarked car, they observed the men drinking from an open container of Hennessy, which was eventually vouchered. They stopped and waited for § 87(2)(b) to drive past them, at which point they pulled him over. After they approached the vehicle, PO Crisfield observed § 87(2)(b) furtively place an object into the glove compartment. They ordered § 87(2)(b) and § 87(2)(b) to exit and searched the vehicle. The search recovered a two-ounce rock of crack-cocaine. § 87(2)(b) became verbally agitated and accused them of planting the drugs in his car. The two men were then placed under arrest and transported to the 52nd Precinct.

At the precinct desk, § 87(2)(b) was irate and was screaming, threatening to sue the city. According to Sergeant Patelli, a lieutenant who was present knows § 87(2)(b) because there are numerous criminal complaints involving him selling drugs at a nearby location. Sergeant Patelli was unable to identify the lieutenant. Due to his high level of agitation, § 87(2)(b) was placed in a cell by himself and his handcuffs were kept on. While inside the cell, § 87(2)(b) continued to yell and began kicking the cell wall. A short time later, § 87(2)(b) began screaming that he needed to use the bathroom. Sergeant Patelli and PO Crisfield escorted § 87(2)(b) out of the cell and into the precinct bathroom. His handcuffs were removed so he could use the bathroom. Sergeant Patelli stated that § 87(2)(b) was not removed to the bathroom for the purpose of being strip-searched. Sergeant Patelli added that he might have strip-searched § 87(2)(b) in the bathroom if he had not become violent. Sergeant Patelli does not recall § 87(2)(b) being strip-searched at the precinct. § 87(2)(b) did not use the bathroom.

After waiting for a short time, Sergeant Patelli moved in to handcuff § 87(2)(b) again. At that point, § 87(2)(b) swung at Sergeant Patelli, striking him in the face while daring Sergeant Patelli to hit him back so he could sue. Sergeant Patelli grabbed § 87(2)(b) to restrain him. During the struggle, § 87(2)(b) punched and kicked. He also bit Sergeant Patelli twice in

the hand area, drawing blood. Sergeant Patelli took him to the ground and put his knee in his back. He did not recall punching § 87(2)(b) in the rib or groin area, although he added that while wrestling with § 87(2)(b) he might have hit him. Sergeant Patelli did not specifically remember § 87(2)(b) face being pushed into the wall, but stated that it could have happened because it was a violent struggle. Sergeant Patelli did not observe PO Crisfield punch § 87(2)(b) in the rib or groin area. PO Crisfield was assisting Sergeant Patelli, however Sergeant Patelli was primarily involved in restraining § 87(2)(b). PO Crisfield pepper sprayed him and assisted Sergeant Patelli in handcuffing § 87(2)(b). Since the struggle was occurring in a confined area, some of the pepper spray got on him. Sergeant Patelli stated that an object was not pushed into § 87(2)(b) rectum and added that his pants were on the entire time. Sergeant Patelli never asked § 87(2)(b) to remove his clothing in the bathroom. Towards the end of the struggle, PO Lynch looked in the bathroom to see if everything was alright. Sergeant Patelli and PO Crisfield took § 87(2)(b) back to his cell and called EMS for him. Due to the fact that § 87(2)(b) was still kicking, velcro straps were placed on his legs to restrain them. The Emergency Services Unit was also called to the precinct. ESU officers restrained § 87(2)(b) and took him to the hospital.

Sergeant Patelli went to § 87(2)(b) § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Police Officer Craig Crisfield

Police Officer Craig Crisfield was interviewed at the CCRB on 2-6-03. On 10-31-02, he was working on anti-crime patrol with Sergeant Patelli and PO Lynch in an unmarked vehicle. PO Crisfield was seated in the rear passenger side. They were travelling on Willoughby Avenue when loud music from a vehicle, which was pointed in the same direction, attracted PO Crisfield's attention. Upon looking at the vehicle, PO Crisfield observed the passenger, § 87(2)(b) drinking from an open container of alcohol, which PO Crisfield recognized as Hennessy or Courvosier. They pulled the car over.

The driver of the vehicle, § 87(2)(b) was asked for his license, registration and insurance. § 87(2)(b) could not immediately produce it and was searching the car for the paperwork. § 87(2)(b) opened the glove compartment to look for it and PO Crisfield, who was on the passenger side of the vehicle, shone his light in that area. At that point, he observed a knotted sandwich bag with a large crack rock inside. § 87(2)(b) and § 87(2)(b) were ordered to get out of the car and they complied. The vehicle was searched and the narcotics were recovered. The two men were then arrested. § 87(2)(b) denied ownership of the drugs. They were brought to the 52nd Precinct.

At the precinct, § 87(2)(b) became agitated and verbally abusive, saying that he had been set up and that the drugs were planted on him. § 87(2)(b) was in his own cell, separate from § 87(2)(b) and was left handcuffed in his cell because of his level of agitation. PO Crisfield stated that some officers in the stationhouse knew § 87(2)(b) from the neighborhood, but none of them had a conversation with him or went into his cell. While in the cell, § 87(2)(b) was kicking and hitting his head against the bars. He complained that he had been falsely arrested. § 87(2)(b) was calm and was trying to calm § 87(2)(b) down. § 87(2)(b) calmed down a bit and said that he had to go to the bathroom. He was taken to the bathroom by Sergeant Patelli and PO Crisfield, who removed his handcuffs. PO Crisfield stated that § 87(2)(b) was taken to the bathroom not for a strip search, but to use the facilities. His cuffs were taken off by PO Crisfield while Sergeant Patelli stood in front of § 87(2)(b). § 87(2)(b) stood at the urinal but did not go to the bathroom. After a few minutes, Sergeant Patelli attempted to handcuff § 87(2)(b) who then became very agitated, saying that he would have the officers' jobs and daring them to

hit him so he could sue, maintaining that he had been falsely arrested. As Sergeant Patelli took hold of § 87(2)(b)'s arm to handcuff him, he swung at Sergeant Patelli, striking him in the face. § 87(2)(b) and Sergeant Patelli both fell to the ground and began wrestling. Sergeant Patelli could not regain control of § 87(2)(b) who would not heed his orders to calm down and stop resisting. Sergeant Patelli grabbed at § 87(2)(b) pulling him down to the ground as he fell. Sergeant Patelli was bitten twice on his hand by § 87(2)(b). He was trying to cuff § 87(2)(b) when he was bitten. Sergeant Patelli did not cover § 87(2)(b)'s mouth. His airflow was never blocked. § 87(2)(b) screamed throughout the interaction. Sergeant Patelli wrestled with § 87(2)(b) for a minute or two before Sergeant Patelli told PO Crisfield to pepper spray § 87(2)(b). PO Crisfield had to get very close to § 87(2)(b) in order to avoid spraying his partner. PO Crisfield was unable to assist Sergeant Patelli in restraining § 87(2)(b) because the space in front of the bathroom urinal where the struggle was taking place was too small. PO Crisfield was never on the ground during the struggle and never had his knee on § 87(2)(b)'s back. He denied punching § 87(2)(b) in the rib or groin area and denied observing his partner punch § 87(2)(b). He added that the space in the bathroom was so confined that it would have been difficult to punch. PO Crisfield stated that no object was ever pushed into § 87(2)(b)'s rectum or ever made contact with that area of his body. PO Lynch came into the bathroom towards the end of the interaction, after he heard commotion.

After he was pepper sprayed, Sergeant Patelli and PO Crisfield handcuffed § 87(2)(b) and brought him back to the cell. Once he was back inside the cell, § 87(2)(b) began kicking the bars and banging his head. The Emergency Service Unit was eventually called and § 87(2)(b) was brought to the hospital § 87(2)(b). Before ESU arrived, § 87(2)(b) was put in velcro restraining straps to prevent him from kicking.

PO Crisfield stated that they were unable to conduct a strip search of § 87(2)(b) because of his violent resistance and eventual removal from the precinct by ESU.

Police Officer Sean Lynch

Police Officer Sean Lynch was interviewed at the CCRB on 3-12-03. On 10-31-02, PO Lynch was working with Sergeant Patelli and PO Crisfield. PO Lynch was driving their unmarked vehicle. They were on patrol, driving northbound on Willoughby Avenue when they observed a double-parked vehicle. The passenger of the vehicle, § 87(2)(b) was drinking a beer. As PO Lynch drove up, the vehicle pulled out in front of their unmarked car. The officers then pulled over the vehicle.

§ 87(2)(b) was asked for his license, insurance and the vehicle's registration. § 87(2)(b) was having some trouble locating the paperwork. § 87(2)(b) opened up the glove compartment and PO Crisfield observed a large, clear bag of what appeared to be crack inside. § 87(2)(b) and § 87(2)(b) were asked to exit the vehicle. The car was searched and the bag was recovered from the glove compartment. The substance in the bag turned out to be candlewax. § 87(2)(b) denied ownership of the bag and claimed the officers had planted it. At that point, § 87(2)(b) told them that he was not a drug dealer, that it was not his car and that the substance in the bag was not crack. The officers transported § 87(2)(b) and § 87(2)(b) to the precinct. PO Lynch drove § 87(2)(b)'s vehicle to the precinct.

In front of the desk, § 87(2)(b) became very loud. He kept repeating that he was not a drug dealer. § 87(2)(b) stated that he had an open lawsuit against the city and threatened to sue the city again. He was yelling at other officers around the desk. An unidentified officer in the precinct told PO Lynch that § 87(2)(b) was a major drug dealer who worked in the vicinity of Morris Avenue. § 87(2)(b) was put into a cell where he was alone. His handcuffs were kept on due to his level of agitation. Once inside the cell, he began banging his head against the wall and making a lot of noise, which PO Lynch heard from the arrest processing room. § 87(2)(b)

§ 87(2)(b) then began complaining that he had to go to the bathroom. PO Crisfield and Sergeant Patelli removed § 87(2)(b) handcuffs and escorted him out of the cell to the bathroom. They were in the bathroom for several minutes when PO Lynch heard yelling from inside the bathroom. He opened the bathroom door and saw that PO Crisfield and Sergeant Patelli had put the handcuffs back on § 87(2)(b) and were ready to escort him out of the bathroom. PO Lynch did not observe any physical force being used against § 87(2)(b) at that point. He stated that § 87(2)(b) was in a standing position and did not have any visible injuries. He also did not complain of any injuries. § 87(2)(b) continued to yell but PO Lynch could not recall what he was yelling. After § 87(2)(b) was placed back inside the cell, velcro restraints were put on his legs because he was kicking violently. Eventually, § 87(2)(b) was taken to the hospital as an EDP.

PO Lynch did not recognize § 87(2)(b) or § 87(2)(b) from any past incident. After seeing him in the cell, PO Lynch had no further interaction with § 87(2)(b). Sergeant Patelli suffered an injury from being bitten in the bathroom by § 87(2)(b). To PO Lynch's knowledge, a strip search of § 87(2)(b) was not conducted.

Medical Documents – § 87(2)(b)

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b)

(b)

§ 87(2)(a) PHL § 18(6)

§ 87(2)(a) PHL § 18(6)

Medical Documents – Sergeant Robert Patelli

§ 87(2)(a) PHL § 18(6)

§ 87(2)(a) PHL § 18(6)

Police Documents

The IAB Investigating Officer's Report, prepared by Detective Dennis of IAB, states "All narcotics possession charges against § 87(2)(b) were subsequently dropped in this matter in that evidence recovered was determined not to be of a narcotic substance." Regarding the potential of the District Attorney taking action in this case, the report states "A post-interview review was conducted separately with ADA Kristen Bowes in this matter. Both [Detective Dennis] and ADA Bowes concurred that no additional investigative or prosecutorial measures would be taken in this matter by the DA's Office..."

§ 87(2)(a) 160.50

§ 87(2)(b) The report notes that force was used during his arrest to "overcome assault." PO Crisfield is listed as the arresting officer.

The BADS report for § 87(2)(b) indicates that he was charged with § 87(2)(a) 160.50

§ 87(2)(b) The report also notes that force was used during his arrest but does not indicate for what reason.

Voucher number § 87(2)(b) prepared by PO Crisfield, is for two items: one "Large Rock of alleged crack cocaine" and one "Clear plastic bag (containing item # 1).

The Emergency Service Report states that ESU officers completed the task of removing § 87(2)(b) from the 52nd Precinct to the hospital in approximately fifty minutes. The job was completed at 12:05 AM. The report indicates that the subject was an emotionally disturbed person and in the "details" section, states the following "Crew responded to EDP in the cells. EMS had EDP in stair chair and escorted EDP into ambulance. EDP was taken to § 87(2)(b) § 87(2)(b)"

The Sprint printout indicates that ESU was requested to respond to the 52nd Precinct at 11:36 PM and arrived at 11:45 PM. At 12:28 PM, ESU stated that they were removing an emotionally disturbed person to the hospital with EMS. The RMP assigned to sector A escorted EMS to the hospital.

Photographic Evidence

IAB investigators took Polaroid photographs of § 87(2)(b) face, back, chest, stomach and buttocks at § 87(2)(b) on 11-1-02 at 2:15 AM. The photographs show no visible injuries.

§ 87(2)(b) arrest photograph, also taken on 11-1-02, shows no visible injuries.

Prior Bad Acts

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

There are no arrests listed for § 87(2)(b) on the Booking, Arraignment and Disposition System.

Sergeant Patelli has four prior CCRB complaints on his record over sixteen years on the force, none of which have been substantiated. PO Crisfield has two prior CCRB complaints over seven years on the force, neither of which was substantiated.

Conclusions and Recommendations

It is undisputed that § 87(2)(b) and § 87(2)(b) were driving on E. 192nd Street and Aqueduct Avenue in the Bronx when they were stopped by Sergeant Robert Patelli, PO Sean Lynch and PO Craig Crisfield. § 87(2)(b) and § 87(2)(b) were asked to exit the car, which was subsequently searched. Officers recovered narcotics and both men were arrested and transported to the 52nd Precinct. A physical altercation occurred in a precinct bathroom between § 87(2)(b) Sergeant Patelli and PO Crisfield. During the altercation, PO Crisfield pepper sprayed § 87(2)(b).

§ 87(2)(g)

A. Sergeant Robert Patelli authorized the stop of the car in which § 87(2)(b) was an occupant.

B. Sergeant Robert Patelli authorized the search of the car in which § 87(2)(b) was an occupant.

§ 87(2)(g)

Article 32, Section 1227 of the New York State Vehicle and Traffic Law, which states:

“The drinking of alcoholic beverages, or the possession, with intent to consume, of an open container containing an alcoholic beverage, in a motor vehicle being driven upon the public highways is prohibited. Any operator or passenger violating this section shall be guilty of a traffic infraction.”

§ 87(2)(g)

PO Crisfield observed, from outside the vehicle, a bag of crack cocaine inside the vehicle. § 87(2)(g)

§ 87(2)(g)

Kamins' New York Search and Seizure states that under this doctrine:

"A police officer may seize items when he has a right to be in the position from which he makes his observation. Thus, a visual inspection could be made as an officer walks by a vehicle on a public street and looks into the interior; an officer, like any member of the public, is permitted to gaze into a car... Similarly, a visual inspection could be made during a valid stop for a traffic violation or during an investigative stop."

It is recommended that allegations A and B be closed as exonerated.

C. Sergeant Robert Patelli authorized the strip-search of § 87(2)(b) in the 52nd Precinct Stationhouse.

D. An officer spoke obscenely and/or rudely to § 87(2)(b)

Strip-searches are often performed when civilians are arrested for narcotics offenses. Patrol Guide Procedure 208-05, regarding "Arrest – General Search Guidelines" states "A strip-search will be utilized when the arresting officer reasonably suspects that weapons, contraband or evidence may be concealed upon the person or in the clothing in such a manner that they may not be discovered by previous search methods." § 87(2)(g)

The officers denied that they ever got a chance to strip-search § 87(2)(b). The explanation that a strip-search was not conducted because § 87(2)(b) began violently struggling beforehand is a reasonable one. § 87(2)(g)

§ 87(2)(b) it is recommended that allegation C be closed as unfounded.

§ 87(2)(b) stated to IAB and CCRB that an officer spoke discourteously to him. However he testified to IAB that it happened during the car stop and stated to CCRB that it was said in the precinct bathroom. § 87(2)(g)

§ 87(2)(b) It is recommended that allegation D be closed as unfounded.

E. Sergeant Robert Patelli used physical force against § 87(2)(b) in the 52nd Precinct Stationhouse.

F. Police Officer Craig Crisfield used physical force against § 87(2)(b) in the 52nd Precinct Stationhouse.

G. Sergeant Robert Patelli instructed Police Officer Craig Crisfield to use pepper spray against § 87(2)(b) in the 52nd Precinct Stationhouse.

§ 87(2)(g)

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] In *PD v. Teeter* (2001), an Administrative Law Judge ruled:

“Once an officer has properly determined to arrest an individual, he is entitled to use a minimal or reasonable level of force in order to restrain and handcuff the individual. To the extent that an arrestee offers resistance to arrest, the permissible level of force used by the officer may be increased to the extent necessary to overcome the resistance.”

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
§ 87(2)(g) [REDACTED]
[REDACTED] It is recommended that allegations E, F and G be closed as exonerated.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: